

1.

CASE #	CASE NAME	HEARING NAME
CVPS2505286	RAIZ VS VOLVO CARS USA, LLC	MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S PERSON(S) MOST KNOWLEDGEABLE, WITH PRODUCTION OF DOCUMENTS

Tentative Ruling: Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in its possession without a subpoena. (CCP §2025.280(a).)

This action is governed by the accelerated discovery timeline for motor vehicle warranty actions because Plaintiffs filed it after 1.01.25 and seek restitution or replacement of the vehicle. (CCP §871.20 et seq.) The statute provides that all parties have the right to conduct initial depositions, each not to exceed two hours, of the manufacturer's PMK, which must be completed "within 120 days after the filing of the [Defendant's] answer." (CCP § 871.26(c).) Volvo filed its answer on 9.11.25. The statutory deadline for its PMK deposition was therefore 1.09.26.

Plaintiffs first noticed the initial PMK deposition for 11.03.25, within the statutory period. (Souto Decl., ¶ 6 & Ex. 1.) Plaintiffs' counsel declares that Plaintiffs served the notice on 9.12.25, but Volvo did not object to the notice nor appear. (*Id.*) Volvo's declaration states that Volvo "never received" Plaintiffs' notice. (Womack Decl., ¶¶ 5-6.) Plaintiffs' proof of service however shows proper service on 9.12.25. (Souto Decl., ¶ 6 & Ex. 1.) Volvo's asserted lack of awareness does not defeat service.

Section 2025.450(a) states: "If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a **valid objection under Section 2025.410**, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (emphasis added.) The parties are required to meet and confer, or in the case of a nonappearance, the moving party has inquired about the non-appearance. (*Id.* at § 2025.450(b)(2).) Plaintiffs satisfied that requirement through their repeated emails, telephone call, and request for alternative dates. (Souto Decl., ¶¶ 7, 10.)

Volvo's 6.30.26 objection does not show that the amended notice was defective. An objection to a deposition notice is proper only if based on any error or irregularity in the notice itself. (CCP §2025.410(a).) These include service, location of the deposition, time limits, etc. A party may challenge the production via an inadequate description or as unjustly burdensome. (*Id.* at § 2025.410(a), (c).) Any other challenge such as privilege, relevance, etc. may be challenged via protective order. (Weil & Brown, California Practice Guide: Civil Procedure Before Trial §8:531 (Rutter Group 2026).) Serving an objection is not a substitute for a motion for protective order. (See *Snyder v. Superior Court* (1970) 9 Cal.App.3d 579, 586 (applying former Code Civ. Proc. § 2021).) Or, Defendant could have filed a motion to quash. (*Id.* at § 2025.410(c).) Here, Volvo did not move to quash or seek a protective order. Critically, even a unilaterally set deposition date is not a valid objection under CCP §2025.410. There is no requirement under the Discovery Act for the deposition date to be mutually agreeable – only that the notice be served 10 days

before the date set for deposition. (*Id.* at § 2025.270(a).) Here, Volvo's counsel actually offered 7.21.26, and Plaintiffs accepted that date. Although medical unavailability could justify continuing a particular PMK deposition, Volvo did not disclose that reason in its objection. Neither did it identify another PMK or provide an alternative date. Under section 2025.230, Volvo must designate and "produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf." (CCP § 2025.230.) It is not entitled to postpone the deposition indefinitely because one intended PMK is unavailable.

Contrary to Defendant's argument, the motion is not moot. An intention to produce a PMK does not provide Plaintiffs the relief sought.

As to the scope of the deposition, §871.26 limits an initial PMK deposition to 11 topics. (CCP §871.26(i).) After the statutory mediation concludes, then standard discovery procedures apply, including an additional PMK deposition. (*Id.*, (e).) The present record does not state whether the mediation has concluded.

If mediation has concluded, categories nos. 1 through 10 are within the permissible scope of discovery. They address the vehicle's service history, communications concerning the vehicle, Defendant's policies and procedures specific to its warranties, and other relevant categories. Categories nos. 11 and 12 seek testimony concerning Volvo's evidence preservation and discovery search procedures. Plaintiffs however have not identified missing evidence or inadequate searches that place those concerns at issue.

With regard to document requests, the record does not show that the parties meaningfully met and conferred regarding the scope of the 43 document requests. Volvo also asserts that Plaintiffs never met and conferred regarding those demands. (Womack Decl., ¶ 13.) Accordingly, the court shall continue the portion of the motion seeking document production and order the parties to meet and confer regarding the disputed requests. If disputes remain, the parties shall submit a supplemental separate statement identifying the remaining requests.

Briefly on the merits on the requests for production, Plaintiffs have the burden to show good cause, i.e., relevance to the subject matter and specific facts justifying discovery. (*Id.* at §2025.450(b)(2).) Requests concerning the subject vehicle's warranties, repair history, communications, diagnostic procedures, technical service bulletins, similar defects, and Volvo's non-privileged repurchase evaluation and policies are relevant. Volvo does not identify any particular burden or explain why materials would contain privileged information. Confidentiality and trade-secret concerns may ordinarily be addressed through a protective order but not a blanket refusal to disclose.

Several requests, however, are irrelevant. Nos. 15 and 29 concern modifications to the engine even though the pled defects involve the electrical and HVAC systems (Compl., ¶ 9), but not the engine. As to no. 20, 24, 34, and 38, they seek "testifying expert witness reports/opinions received" and deposition transcripts from "any arbitration, lawsuit, or any other legal proceeding or action" involving the same model. No. 40 seeks all broadly defined "LEMON LAW DOCUMENTS." No. 43 seeks "organizational chart or other documents" of Volvo "describing any reporting or superior/subordinate relationship, or any policies and procedures regarding communications between employees, subsidiaries, departments, and/or divisions." Plaintiffs have not shown good cause as to those.

As to sanctions, the court *shall* impose sanctions unless the court finds that the losing party acted with substantial justification or other circumstances make the imposition

of the sanction unjust. (Code Civ. Proc. § 2025.450.) Here, sanctions are appropriate. Volvo's unexplained failure to appear on 11.03.25, inaccurate scheduling objection regarding the 7.21.26 date, and failure to offer another PMK or firm date defeat substantial justification. Plaintiffs request \$2,000 in sanctions and support it with counsel's declaration showing 5 hours at \$400 per hour (including 2 anticipated hours for reviewing opposition papers and hearing appearance.) This is not unreasonable.

Plaintiffs' Motion to Compel Deposition of Person Most Knowledgeable with Production of Documents GRANTED in PART.

Defendant Volvo Cars of North America ordered to produce a Person(s) Most Knowledgeable for deposition within 30 days.

Defendant's PMK to answer Deposition Categories 1-10. Plaintiffs' request for Categories 11 and 12 DENIED without prejudice.

Parties are ordered to meet and confer regarding the document production issues and submit a declaration 10 days prior to the hearing date addressing what documents are still in dispute.

The motion for the Request for Production of Documents shall be continued to 11.04.26.

Sanctions awarded in the amount of \$2000 to be payable to Plaintiffs' attorney within 30 days.

Trial Setting Conference continued to 11.04.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508414	MAUL VS VERISMA SYSTEMS, INC.	MOTION TO DISMISS COMPLAINT OF KIMBERLY MAUL BY VERISMA SYSTEMS, INC.

Tentative Ruling: This is an employment dispute brought by Plaintiff Kimberly Maul against Defendant Verisma Systems, Inc. Verisma previously moved the court to dismiss this action on the grounds of improper venue pursuant to CCP section 418.10(a)(2).

Only July 10, 2026, the court denied that motion as the motion was brought pursuant to CCP section 418.10(a)(2), which made the motion was untimely, noting that a proper motion needed to be brought pursuant to CCP section 410.30.

Now Defendant Verisma moves the court to dismiss the Complaint for improper venue pursuant to CCP section 410.30 on the grounds that Plaintiff is not a resident of California, never evinced her intent to permanently reside in California, paid almost no employment taxes to California, specifically requesting to pay taxes to the State of Georgia, and filed and received unemployment benefits in the State of Georgia.

In opposition, Plaintiff Maul asserts that this court heard and denied Defendant's motion to dismiss and now seeks a second bite at the apple with its renewed motion to dismiss for improper venue without complying with CCP section 1008(b). Further, despite Defendant's offer to stipulate to waive the statute of limitations defense, Georgia remains